

24AVCV01017 24AVCV01017

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Case Number: 24AVCV01017 Hearing Date: September 8, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

SANDRA M LOZANO OLAEZ,

Plaintiff,

v.

VALLARTA FOOD ENTERPRISES, INC. dba VALLARTA SUPERMARKETS; and DOES 1 through 50, inclusive,

Defendants.

Case Number 24AVCV01017

[TENTATIVE]

RULING ON MOTION

Date of Hearing: September 8, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a personal injury case arising from a slip and fall incident. Plaintiff Sandra M Lozano Olaz (Plaintiff) moves to compel further discovery responses from Defendant Vallarta Food Enterprises, Inc. (Defendant) to Plaintiff's Special Interrogatories, Set One and Requests for Production of Documents, Set One.

On August 19, 2024, Plaintiff filed a complaint against Defendant, asserting one cause of action for Negligence and Premises Liability. Specifically, Plaintiff claims that on August 22, 2022, while on the premises of 440 E Palmdale Blvd., Palmdale, CA 93550 (the Property), which is owned, managed, controlled, inspected, serviced, maintained, operated, leased, and rented by Defendant, Plaintiff was injured when she slipped and fell on a puddle of liquid on the floor of the store, causing Plaintiff to fall. (Compl., ¶¶ 6-7, 10.) Plaintiff alleges Defendant failed to warn Plaintiff of the dangerous and defective conditions, which were known or should have been known by Defendant. (Compl., ¶ 9.)

On February 20, 2026, Plaintiff filed the present motion to compel further discovery responses from Defendant.

On August 25, 2026, Defendant filed an opposition.

On September 1, 2026, Plaintiff filed a reply.

II. Preliminary Procedural Issues

Meet and Confer – A motion to compel further responses must be accompanied by a meet and confer declaration showing “a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., §§ 2016.040, 2030.300, subd. (b)(1), 2031.310, subd. (b)(2).)

Defense counsel has set forth sufficient information that meet and confer efforts occurred to informally resolve the discovery disputes with Defense counsel, but that no resolution was reached. (Lopez Decl., ¶¶ 7-12.) The Court finds this requirement satisfied.

Timeliness of Plaintiff's Reply – All reply papers are due five court days before the hearing on the motion. (Code Civ. Proc., § 1005, subd. (b).) Due to the Court holiday on Monday, September 7, 2026, Plaintiff's reply was due on or before August 31, 2026. Therefore, Plaintiff's reply is untimely.

However, in the absence of any prejudice to Defendant, and in the interests of adjudicating the issues raised on the merits, the Court will exercise its discretion and consider the reply on the merits.

Issues Raised in Defendant's Opposition – The Court notes a number of procedural issues raised by Defendant in opposition to the motion, including Plaintiff's failure to set an IDC prior to filing the motions to compel, singular filing for multiple discovery requests, and failure to define at-issue terms. The Court notes that it does not require the parties to set an IDC before filing a motion to compel, or at any time for that matter (Defendant is referring to the procedures of the judicial officer previously in this Department). Aside from that, Defendant is correct that Plaintiff's motion fails to comply with a number of procedural specifications. However, the Court does not find that these procedural deficiencies are prejudicial or that they warrant outright denial of the motion.

III. Legal Standard

Standard for Motions to Compel Further Discovery Responses - Interrogatories – In responding to a set of interrogatories, a party must provide one of the following: (1) an answer “containing the information sought to be discovered”; (2) “an exercise of the party’s option to produce writings”; or (3) an objection to the particular interrogatory. (Code Civ. Proc., § 2030.210, subd. (a).) Each answer to an interrogatory “shall be as complete and straightforward as the information reasonably available to the responding party permits.” (Code Civ. Proc. § 2030.220, subd. (a).) If any objections are made, “the specific ground for the objection shall be set forth clearly in the response.” (Code Civ. Proc., § 2030.240, subd. (b).)

Upon receipt of responses to interrogatories, the propounding party may move for an order compelling further responses if they deem the responses to be “evasive or incomplete” or if “[a]n objection to an interrogatory is without merit or too general.” (Code Civ. Proc., §§ 2030.300(a)(1), (a)(3).) A motion to compel further responses to interrogatories must be accompanied by a meet and confer declaration showing “a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., §§ 2016.040, 2030.300, subd. (b)(1).) The motion must also be accompanied by a separate statement containing the text of the interrogatories at issue, the text of each response at issue, and a statement of the reasons why a further response is required, though the court may permit a party to submit “a concise outline of the discovery request and each response in dispute” in lieu of a separate statement. (Code Civ. Proc., § 2030.300, subd. (b)(2); Cal. Rules of Court, rule 3.1345.)

A motion to compel further response lies where the party to whom the interrogatories were directed gave responses deemed improper by the propounding party; e.g., objections, or evasive or incomplete answers. (Code Civ. Proc., § 2030.300.) Unlike a motion to compel further responses to a request for production, there is no “good cause” requirement applicable to a motion to compel further responses to interrogatories. “The ruling usually is based on consideration of the following factors: the relationship of the information sought to the issues framed in the pleadings; the likelihood that disclosure will be of practical benefit to the party seeking discovery; the burden or expense likely to be encountered by the responding party in furnishing the information sought.” (Weil, et al., Cal. Prac. Guide, Civil Procedure Before Trial, Ch. 8F-7, ¶ 8:1181; see also *Columbia Broadcasting System, Inc v. Superior Court* (1968) 263 Cal.App.2d 12, 18–19 [“[I]n deciding a motion under [former] section 2030 the trial court must, of necessity, consider not only the stated objections to the interrogatories, but also the interrogatories themselves, as well as the pleadings, and the contentions of the interrogating party as to the purpose and validity of the interrogatories. If the interrogatories stray too far and seek information which cannot reasonably serve the acknowledged purposes of pretrial discovery, the motion should be denied.”].) If a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure to fully answer. (*Coy v. Superior Court of Contra Costa County* (1962) 58 Cal.2d 210, 220–221.)

If a party fails to serve a timely response to interrogatories, the party waives the right to exercise the option to produce writings under Section 2030.230 and waives any objection to the demand, including objections based on privilege or work product. (Code Civ. Proc., § 2030.290, subd. (a).) The Court may relieve a party of this waiver only if the party has subsequently served a substantially code-compliant response and the party’s failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2030.290, subd. (a)(1)-(2).)

Standard for Motions to Compel Further Discovery Responses – Requests for Production of Documents – Motions to compel further responses to requests for production must set forth specific facts showing good cause justifying the discovery sought by the request. (Code Civ. Proc., § 2031.310, subd. (b)(1).) To establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact. (*Digital Music News LLC v. Superior Court* (2014) 226 Cal.App.4th 216, 224 (disapproved on other grounds by *Williams v. Superior Court* (2017) 3 Cal.5th 531).)

A demanding party may move for an order compelling further response to RPDs if (1) a statement of compliance with the demand is incomplete, (2) a representation of inability to comply is inadequate, incomplete, or evasive, or (3) an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).) “A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.” (Code Civ. Proc., § 2031.230.)

If a party fails to serve a timely response to a request for production, the party waives any objection to the demand, including objections based on privilege or work product. (Code Civ. Proc., § 2031.300, subd. (a).) The Court may relieve a party of this waiver only if the party has subsequently served a substantially code-compliant response and the party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2031.300, subd. (a)(1)-(2).)

IV. Discussion

Application – Plaintiff moves to compel Defendant's further responses to Special Interrogatories, Set One and Requests for Production of Documents, Set One, pursuant to Code of Civil Procedure sections 2030.220, subdivisions (a)-(c) and 2030.300, et seq. on the grounds that Defendant was properly served discovery requests on October 21, 2025 and has failed to provide full and code-compliant answers responsive to the request and has asserted meritless objections. (Notice of Motion, p. 2:12-24.)

The relevant factual background is set forth by Plaintiff as follows:

Plaintiff served the discovery requests on Defendant on October 21, 2025. (Lopez Decl., ¶¶ 3-4, Ex. A, B.) On November 18, 2025, Defendant served its responses. (Lopez Decl., ¶¶ 5-6, Ex. C, D.) On December 11, 2025, Plaintiff's counsel emailed Defense counsel to meet and confer regarding the responses. (Lopez Decl., ¶ 7, Ex. E.) On December 17 and 18, 2025, Defense counsel requested, and Plaintiff's counsel granted, a two week mutual extension for further responses and for Plaintiff to bring a motion to compel. (Lopez Decl., ¶ 8, Ex. F.) On January 2, 2026, counsel granted another mutual two week extension. (Lopez Decl., ¶ 9, Ex. G.) On January 30, 2026, counsel granted another mutual extension, making the due date for further responses February 6, 2026 and a motion to compel February 20, 2026. (Lopez Decl., ¶ 10, Ex. H.) On February 6, 2026, Defendant served further responses to both requests and a meet and confer letter explaining why further responses were not provided for some requests. (Lopez Decl., ¶ 11, Ex. I.) Plaintiff's counsel sent correspondence regarding the missing responses on February 10, 2026 and requested an IDC but received no response. (Lopez Decl., ¶ 12, Ex. J.) Plaintiff thereafter filed the present motion to compel further responses to the Special Interrogatories and Requests for Production.

a. Special Interrogatories, Set One

At issue are Defendant's supplemental responses to Interrogatory Nos. 10-12, 14-17, 32, 34, 45, and 64. (Plaintiff's Sep. Statement.) These interrogatories include six requests seeking for information dating back 10 years before the subject incident, including the dates and times of any and all inspections and maintenance done on the Property and the name, address, and contact information for any individual who inspected the Property within the past 10 years, two requests seeking a description of the Property's and floor's "condition," and one requesting any and all falling incidents in which Defendant was involved prior to the incident without limitation.

Defendant objected to these requests, in part, on the grounds that they are overly broad, burdensome, oppressive, and not properly limited in time or scope. Defendant also objected on the grounds that certain requests were duplicative, and on the grounds that the undefined term "condition" was vague, ambiguous, unintelligible, and calls for speculation. Plaintiff argues these objections are evasive and meritless.

In opposition, Defendant asserts that the present motion is moot because it provided Plaintiff with amended responses to all discovery requests on August 24, 2026 based on the fact that Daniel Food Enterprises, Inc. is the proper defendant that should have been served the requests, as Daniel controlled, managed, and operated the Property at the time of the incident. (Opp., p. 4:19-25, 7:15-20.)

On reply, Plaintiff argues that Defendant's supplemental responses are not code-compliant because Defendant failed to provide any evidence supporting its burden objection and asserts meritless vagueness objections. (Reply, p. 4:19-26.)

The Court notes that the present motions are not moot. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390 expressly authorizes the Court to hear a motion to compel initial responses even where a party filed untimely responses after the motion to compel was filed but before the hearing. The Sinaiko Court reasoned that to accept that a court has no discretion to hear and rule on a motion to compel initial responses after untimely responses are provided "would remove an important incentive for parties to respond to discovery in a timely fashion" and "a party to whom interrogatories were directed could wait until the hearing on a section 2030.290 motion was imminent, then serve a set of evasive and incomplete responses, and thereby unilaterally deprive the trial court of authority to hear the motion." (*Sinaiko*, supra, 148 Cal.App.4th at 408.) Therefore, "once a party has failed to serve timely [discovery] responses, the trial court has the authority to hear a propounding party's motion to compel responses... regardless of whether a party serves an untimely response." (*Ibid.*)

The County of San Benito v. Superior Court (2023) 96 Cal.App.5th 243, 256 echoed Sinaiko's reasoning in holding the same as to motions to compel further responses, stating that to adopt such an "interpretation of the discovery act—that a party opposing a motion to compel further responses may unilaterally divest the court of authority to rule on the motion by serving a further response in the interim—would permit a party faced with a motion to compel to delay its adjudication indefinitely by successive supplemental but inadequate responses, each prompting a further motion to compel, each of which in turn would be defeated by piecemeal supplementation."

However, the Court also finds that Defendant's objections to the interrogatories at issue have merit.. Many of Plaintiff's interrogatories request detailed information, including the date and time of all inspections and maintenance of the entire premises, and the name, address, and telephone number of each person who performed maintenance or inspection, in the ten years preceding the subject incident. Many of the interrogatories propounded are unreasonable in temporal scope and are facially burdensome. The interrogatories also request all falling incidents involving Defendant with no limitation on date, time, or location. While Plaintiff argues that 10 years of records of inspections and maintenance are necessary to establish a pattern of injury or substandard inspection of the Property, the Court disagrees that 10 years of detailed information regarding, in part, inspections that take place every 30 minutes, is necessary for Plaintiff to prove her case or even tangentially relevant.

The Court does agree, however, that Defendant's supplemental responses, aside from its otherwise meritorious objections, on their own are deficient and not code compliant. In responding to interrogatories, a party's answer must provide one of the following: (1) an answer "containing the information sought to be discovered"; (2) "an exercise of the party's option to produce writings"; or (3) an objection to the particular interrogatory. (Code Civ. Proc., § 2030.210, subd. (a).) Each answer to an interrogatory "shall be as complete and straightforward as the information reasonably available to the responding party permits." (Code Civ. Proc. § 2030.220, subd. (a).)

Here, Defendant's supplemental responses restate its objections, with the following included language: "Vallarta Food Enterprises, Inc., did not control, manage, or operate the subject Vallarta Supermarkets located at 440 East Palmdale Blvd., Palmdale, California 93550. Defendant, Daniel Food Enterprises, Inc., is the correct legal entity that controlled, managed, and operated the subject Vallarta Supermarkets located at 440 East Palmdale Blvd., Palmdale, California 93550, and all responsive information will be in Daniel Food Enterprises, Inc.'s possession, custody, or control." (See Stone Decl., Ex. E.) The Court notes that this statement, though it may well be true, does not comply with the requirements for code-compliance responses to interrogatories. The Court also finds that Defendant's objections as to vagueness for a number of terms unmeritorious, including as to the words "inspection," "maintenance," and "condition" in context of the underlying action and the interrogatories propounded, and if appropriately limited. That said, because the Court finds Defendant's objections to broadness and scope of most of the interrogatories warranted, it does not find that Defendant's responses as they stand are evasive or non-code compliant.

Plaintiff's request is GRANTED in part. Interrogatory Nos. , 12, 16, and 17 shall be limited in time for a period of three months preceding the subject incident, limited to the subject floor at issue, and to include within "inspections" safety checks, maintenance reviews, walkthroughs, or condition assessments. Interrogatory No. 64 shall be limited in time for a period of three years preceding the subject incident and limited to slip and fall accidents at the store at issue. To the extent any other

Special Interrogatory is not expressly addressed, the motion is DENIED

In accordance with these limitations, Defendant shall provide complete and code-compliant responses to the at-issue interrogatories. To the extent that Defendant contends it is unable to comply with a specific interrogatory, Defendant must provide code-compliant responses to that effect. (See Code Civ. Proc., § 2023.220, subd. (a)-(b) [If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party].)

b. Request for Production of Documents, Set One

At issue are Defendant's responses to Request Nos. 14, 18, 22, 36, and 42. All of these requests seek documents dating back ten years prior to the subject incident.

Defendant objected to these requests, in part, on the grounds that they are overly broad, burdensome, oppressive, and not properly limited in time or scope. Defendant also objected on the grounds that certain undefined terms are vague, ambiguous, unintelligible, and call for speculation. Finally, Defendant asserts that some responsive documents are protected by attorney-client privilege. Plaintiff argues these objections are evasive and meritless.

Defendant reiterates its arguments set forth above. On reply, Plaintiff argues that Defendant's supplemental responses are not code-compliant as the responses fail to identify any responsive documents, does not assert inability to comply after diligent search and reasonable inquiry, and does not state whether any responsive documents ever existed or what happened to them. (Reply, p. 5:5-12.)

The Court finds Defendant's overbroad and burdensome objections are meritorious on the grounds that Plaintiff seeks documentation dating back ten years prior to the subject incident. The Court does not find that Plaintiff has set forth facts sufficient to show good cause exists for the scope of records requested.

However, notwithstanding these valid objections, the Court finds that the supplemental responses and other objections set forth by Defendant are not code-compliant or otherwise are unmeritorious. In its supplemental responses, Defendant restates its objection and adds: "Vallarta Food Enterprises, Inc., did not control, manage, or operate the subject Vallarta Supermarkets located at 440 East Palmdale Blvd., Palmdale, California 93550. Defendant, Daniel Food Enterprises, Inc., is the correct legal entity that controlled, managed, and operated the subject Vallarta Supermarkets located at 440 East Palmdale Blvd., Palmdale, California 93550, and all responsive information will be in Daniel Food Enterprises, Inc.'s possession, custody, or control." This response does not comply with Section 2031.230 regarding statements of inability to comply with any certain demand.

Plaintiff's motion is GRANTED in part. Request Nos. 15, and 42 shall be limited in time for a period of three years preceding the subject incident. Request Nos. 22 and 36 shall be limited in time to a period of three months preceding the subject incident. Defendant shall provide code-compliant responses to all five requests in accordance with this Order. To the extent any other Special Interrogatory is not expressly addressed, the motion is DENIED.

c. Sanctions

Plaintiff requests sanctions in the amount of \$2,185.00 for fees and costs incurred in bringing the present motion, consisting of 5.0 hours of work at \$425/hr. and a \$60 filing fee, payable within 15 days. "The court shall impose monetary sanctions ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response ..., unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2031.310, subd. (h).)

The Court finds that Defendant's objections on the basis that Plaintiff's requests were overbroad and burdensome warranted for a majority of Plaintiff's at-issue requests. The Court also finds Defendant acted with substantial justification in opposing the motion to compel further responses. Plaintiff's motions were granted in part, but only in a limited scope in accordance with Defendant's valid objections.

Therefore, the Court declines to award sanctions at this time.
